URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.540(107).pdf
RESOLUTION MSC.540(107) (adopted on 8 June 2023)
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RESOLUTION MSC.540(107)
(adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR SEAFARERS (STCW), 1978
THE MARITIME SAFETY COMMITTEE,
RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO article XII of the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978 ("the 1978 STCW Convention"), concerning the procedures for amending the 1978 STCW Convention,
RECOGNIZING the need for providing a timely response to the global digitalization trend, as well as a solution for the management and control of seafarers' certificates issued pursuant to the 1978 STCW Convention,
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well as a solution for the management and control of seafarers' certificates issued pursuant to the 1978 STCW Convention,
HAVING CONSIDERED, at its 107th session, amendments to the 1978 STCW Convention proposed and circulated in accordance with article XII(1)(a)(i) thereof,
1 ADOPTS, in accordance with article XII(1)(a)(iv) of the 1978 STCW Convention, amendments to said Convention, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article XII(1)(a)(vii)(2) of the 1978 STCW Convention, that said amendments shall be deemed to have been accepted on 1 July 2024, unless, prior to that date, more than one third of Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more have notified to the Secretary-General of the Organization that they object to the amendments;
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shipping of ships of 100 gross register tons or more have notified to the Secretary-General of the Organization that they object to the amendments;
3 INVITES Parties to note that, in accordance with article XII(1)(a)(ix) of the 1978 STCW Convention, the amendments annexed hereto shall enter into force on 1 January 2025 upon their acceptance, in accordance with paragraph 2 above;
4 URGES Parties to implement the amendments to regulations I/1 and I/2 at an early stage;
5 REQUESTS the Secretary-General, for the purposes of article XII(1)(a)(v) of the 1978 STCW Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Parties to the 1978 STCW Convention;
6 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annex to Members of the Organization, which are not Parties to the 1978 STCW Convention.
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ANNEX

AMENDMENTS TO THE INTERNATIONAL CONVENTION ON STANDARDS OF
TRAINING, CERTIFICATION AND WATCHKEEPING FOR SEAFARERS (STCW), 1978

CHAPTER I
GENERAL PROVISIONS

Regulation I/1
Definitions and clarifications

1 In paragraph 1, the following new definition is added after existing sub-paragraph .44:

".45 Original form means a paper or an electronic form of any certificate required by the Convention, issued in the format approved by the Administration, provided that the minimum information, as required in paragraph 4 of section A-I/2 of the STCW Code, is readily available."

Regulation I/2
Certificates and endorsements

2 Paragraph 11 is replaced by the following:
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Regulation I/2
Certificates and endorsements

2 Paragraph 11 is replaced by the following:

"11 Subject to the provisions of regulation I/10, paragraph 5, any certificate required by the Convention must be kept available in its original form on board the ship on which the holder is serving. If an electronic form is used, the minimum required data must be accessible as defined by the Administration in accordance with the STCW Code, which is necessary to initiate a verification procedure."

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